

1 ENGROSSED SENATE
2 BILL NO. 1561

By: Howard of the Senate

3 and

4 Archer of the House
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6 An Act relating to emergency medical services;
7 amending 63 O.S. 2021, Section 1-2509, which relates
8 to violations; updating statutory references;
9 modifying authority of the State Commissioner of
Health to impose disciplinary action; specifying
additional forms of disciplinary action; updating
statutory language; and providing an effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-2509, is
14 amended to read as follows:

15 Section 1-2509. A. 1. No person, company, governmental
16 entity, or trust authority may operate an ambulance service within
17 this state except as provided in this section. The State
18 Commissioner of Health, the district attorney of the county wherein
19 the ambulance service operates or may be found, or the Attorney
20 General of this state shall have the authority to bring an action to
21 enjoin the operation of any ambulance service not in compliance with
22 the provisions of ~~this act~~ the Oklahoma Emergency Response Systems
23 Development Act.
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1 2. A ground ambulance service based outside of this state that
2 is licensed and in good standing in its home state may respond to an
3 emergency request for care and transport of a patient within this
4 state provided no local licensed ambulance service is readily
5 available, and may be exempt from the licensing requirements of this
6 state pursuant to rules promulgated by the State ~~Board~~ Commissioner
7 of Health.

8 3. Requests for service must be referred by an Oklahoma
9 emergency dispatch center. The ~~Board~~ Commissioner may require such
10 exempt ambulance service to subsequently provide documentation of
11 emergency response activities performed within this state.

12 4. The State Department of Health shall have the authority to
13 investigate any complaint associated with an emergency response by
14 an out-of-state ambulance service in the same manner as ambulance
15 services licensed by the Department within this state.

16 B. The Commissioner shall have the authority to ~~revoke or~~
17 ~~suspend any license, to issue probationary licenses, or to levy such~~
18 ~~administrative fines and penalties as may be deemed necessary,~~
19 impose disciplinary actions for violations of the provisions of ~~this~~
20 ~~act,~~ the Oklahoma Emergency Response Systems Development Act in
21 accordance with the severity of the violation and subject to the
22 provisions of the Administrative Procedures Act. Disciplinary
23 actions may include, but are not limited to, the following:

24 1. Revocation or suspension of any license;

1 2. Probation;

2 3. A period of free public or charity service;

3 4. Satisfactory completion of an educational, training, or
4 treatment program or programs; and

5 5. Administrative fines and penalties.

6 C. The powers afforded the Commissioner within the general
7 enforcement provisions of the Oklahoma Public Health Code are
8 additionally incorporated herein.

9 ~~C.~~ D. In addition to any other penalties, any person, company,
10 governmental entity, or trust authority who violates any of the
11 provisions of ~~this act~~ the Oklahoma Emergency Response Systems
12 Development Act relating to compliance with the provisions of ~~this~~
13 ~~act~~ the Oklahoma Emergency Response Systems Development Act or of
14 standards, specifications, procedures, and rules adopted by the
15 ~~Board~~ Commissioner may be punished by the assessment of a civil
16 penalty ~~of~~ not more than One Hundred Dollars (\$100.00) for each
17 violation. Each day a violation continues shall be considered a
18 separate offense.

19 ~~D.~~ E. The operation or maintenance of an ambulance service in
20 violation of ~~this act~~ the Oklahoma Emergency Response Systems
21 Development Act, or the rules promulgated by the ~~Board~~ Commissioner,
22 is declared a public nuisance inimical to the public welfare. The
23 Commissioner in the name of the people of the state, through the
24 Attorney General, or the district attorney of the county in which

1 the ambulance service is located, may, in addition to other remedies
2 herein provided, bring action for an injunction to restrain such
3 violation or to enjoin the future operation or maintenance of any
4 such ambulance service.

5 SECTION 2. This act shall become effective November 1, 2026.

6 Passed the Senate the 5th day of March, 2026.

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Presiding Officer of the Senate

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10 Passed the House of Representatives the ____ day of _____,
11 2026.

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Presiding Officer of the House
of Representatives

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